

M ZHAZO

On August 2, the Rajya Sabha passed far-reaching amendments to the Forest (Conservation) Act, or FCA, 1980, a week after the bill saw its way through the Lok Sabha without any debate. It comes in the face of protests by conservationists who claim the changes will nullify the gains made in forestry over the past four decades. The FCA is a key legislation that comes into play the moment any land designated as forest—under the Indian Forest Act, 1927, or any other law—has to be 'de-reserved' or put to use for 'non-forest purposes' by the government or a private agency. Any such move requires thorough scrutiny before it can get the Centre's approval.

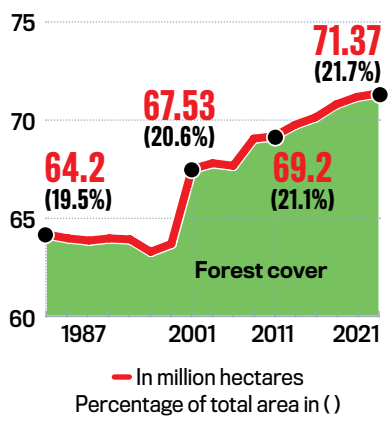
It was in March this year that the Union ministry of environment, forest and climate change (MoEFCC) had tabled the draft Forest (Conservation) Amendment Bill, 2023, in Parliament, following which it was referred to a joint parliamentary committee (JPC). The JPC submitted its report on July 20, curiously proposing no changes, even though it had received more than 1,300 responses, many of them objections from environmentalists, state governments and other stakeholders, as well as dissenting notes from some of its members.

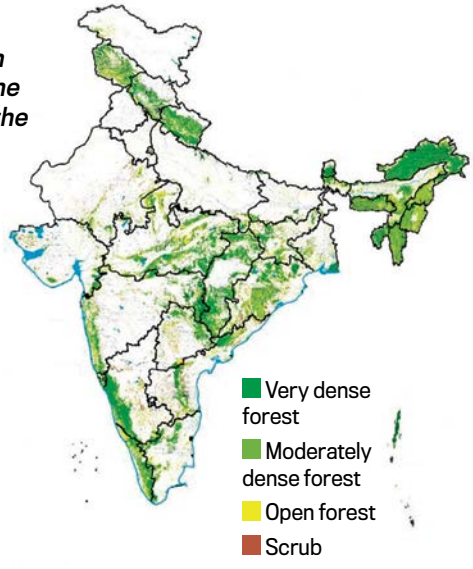
From mitigating the impact of climate change to fast-tracking strategic and security-related projects of national importance, the Union government has cited multiple reasons necessitating the amendments. But with critical issues left to the discretion of the executive, many stakeholders fear possible misinterpretation and misuse of the law. Among them are 400 ecologists, students and researchers who had written to the Union environment and forest minister Bhupender Yadav recently, but their concerns seem to have been brushed aside, as also those of several states that had sought changes in the provisions.

The provisions include a preamble to be added to the principal Act, envisaging "an increase in the forest and tree cover to one-third" of India's land area. Ironically, the amendments will do quite the opposite. Per the India State of Forest Report (ISFR), 2021, 71.4 million hectares (mha), or 21.7 per cent of the country's geographical area, is under forest cover. (Combining that with the tree cover, the total comes to 80.9 mha, or 24.6 per cent of the area.) Though estimates may vary, up to 28 per cent, or a whopping 20 mha, of these forests stand to be taken out of

INDIA'S FOREST COVER

India's forest cover increased by a mere 0.6 percentage points between 2011 and 2021. The amendments to the FCA are likely to take 28 per cent of the cover out of the Act's ambit





SOURCE: India State of the Forest Reports 1987-2021